

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

Present

Justice Jamal Khan Mandokhail
Justice Muhammad Ali Mazhar
Justice Athar Minallah
Justice Syed Hasan Azhar Rizvi
Justice Shahid Waheed
Justice Musarrat Hilali

Crl. I.C.A. No. 1 of 2025 & Crl. M.A. 135/2025

(Against order dated 21.01.2025 of this Court passed in
Crl. O. P. 01/2025)

Nazar Abbas, Additional Registrar (Judicial)
presently OSD Supreme Court of Pakistan

Appellant

Versus

The State

Respondent

For the Appellant:

Mr. Muhammad Shahid Kamal Khan,
ASC
Mr. Anees Muhammad Shahzad, AOR
With the appellant

For the Respondents:

Ch. Aamir Rehman, Addl. AGP
Mr. Rashideen Kasuri, Addl. AGP
(on Court's call)

Voluntary Appeared:

Barrister Salahuddin Ahmed, ASC
Mr. Shahid Jamil Khan, ASC
Mr. Muhammad Shoaib Shaheen,
ASC

Date of Hearing:

27.01.2025

ORDER

Criminal MA No. 43 of 2025

This application requests permission to withdraw the appeal filed under section 19 of the Contempt of Court Ordinance, 2003 challenging the show cause notice. It is submitted that, in light of the fact that the original bench has discharged the contempt notice, the continuation of this appeal is no longer necessary or relevant, and, therefore, permission to withdraw the appeal be granted.

2. Considering the facts stated above, granting the prayer made in this application is deemed reasonable and appropriate. /

3. Consequently, this application is hereby granted, and the appeal is dismissed on the grounds of having been withdrawn.

Justice Athar Minallah

Justice Shahid Waheed

Islamabad
27th January, 2025
Rizwan

I concur with my brother Shahid Waheed J. The impugned order has become infirm since the notice has been discharged. This Bench was constituted under the contempt of Court Ordinance, 2003 read with Article 204 of the Constitution of the Islamic Republic of Pakistan, 1973. There is ^{no} other matter pending before this Bench. With the discharge of the impugned notice proceedings under the contempt of Court Ordinance, 2003 are no more pending. The appeal is, therefore, accordingly dismissed.